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ENGROSSED HOUSE
BILL NO. 3416

and
Alvord of the Senate

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

Section 1501. A. The county purchasing agent:

1 1. Shall, within the amount of the unencumbered balance, make
2 all purchases that are paid from county funds for the various
3 institutions, departments, officers, and employees of the county,
4 except at public auctions and as otherwise provided for by law;

5 2. May make purchases for political subdivisions of this state
6 within the county if authorized by appropriate action of the
7 governing board or body of the political subdivision affected;

8 3. Shall make purchases and rental or lease-purchase agreements
9 only after following the bidding procedures as provided for by law,
10 except:

11 a. when the purchase does not exceed Twenty-five Thousand
12 Dollars (\$25,000.00) by department. All purchases
13 made pursuant to this subparagraph shall be by a
14 single purchase order. Splitting purchase orders
15 which would result in paying an amount in excess of
16 the limitations specified in this subparagraph is
17 expressly prohibited. Any person convicted of
18 violating the provisions of this subparagraph shall be
19 guilty of a misdemeanor and such person shall forfeit
20 the person's position or office,

21 b. when the total payments of a rental or lease-purchase
22 agreement do not exceed the current bid limit as
23 established in subparagraph a of this paragraph,
24

- c. when articles and items are covered by single-source contracts,
- d. service or maintenance contracts on equipment or machinery which are entered into at the time of the purchase of the equipment or machinery,
- e. purchases made pursuant to a blanket purchase order as provided for in Section 310.8 of Title 62 of the Oklahoma Statutes,
- f. when materials for road or bridge improvements do not exceed Seven Dollars (\$7.00) per yard or per ton,
- g. purchases of fuel if the county purchasing agent obtains quotes from at least three vendors prior to the purchase and the lowest and best quote is selected. Documentation of these quotes shall be recorded in the permanent records of the clerk,
- h. purchases of tools, apparatus, machinery, or equipment from a state agency or a political subdivision of the state as provided for in subsection C of Section 421.1 of this title,
- i. purchases of food for prisoners incarcerated in the county jail; provided, in counties having a population in excess of one hundred thousand (100,000) persons, the county purchasing agent shall follow bidding procedures as provided by law unless the county

1 purchasing agent obtains quotes pursuant to the whole
2 total of food items requisitioned prior to the
3 purchase and the lowest and best quote is selected.
4 Documentation of these quotes shall be recorded in the
5 permanent records of the county clerk,

6 j. when a county solicits bids for the purchase of
7 processed native materials for road and bridge
8 improvements, the county may accept all bids received,
9 with the lowest and best bid from those accepted to be
10 selected at the time of opening of any construction
11 project. The selection of the bid shall be based upon
12 availability, bid price, and transportation costs,

13 k. when a vendor has been selected as the lowest and best
14 bidder to furnish a particular item or items to the
15 county during a specified time period and in the event
16 the vendor is unable to perform, the purchasing agent
17 may solicit ~~telephone~~ quotes for the item or items
18 needed or select the next lowest and best bidder from
19 the list of qualified bidders and provide for the
20 purchase of the items at the lowest and best quote
21 available. All vendors submitting bids for the
22 specific product or service will be considered at or
23 below the amount they bid,

- 1 1. when considering the purchase of an item or items from
2 the state bid list as provided by the Office of
3 Management and Enterprise Services or the General
4 Services Administration, if the same exact item is
5 available from a local vendor at or below the price
6 listed on the state bid list or the General Services
7 Administration list, the item may be obtained from the
8 vendor,
- 9 m. any item or items bid by the Office of Management and
10 Enterprise Services which may be purchased by the
11 county, provided the vendor is willing to supply the
12 item or items to the county at the bid price,
- 13 n. when a county obtains proceeds from the sale of its
14 property at a public auction, that county may use
15 those proceeds to acquire items previously identified
16 as needed by the county at the same public auction
17 pursuant to subsection D of Section 1505 of this
18 title,
- 19 o. when an item or items have been competitively bid by a
20 county, or on behalf of a group of counties, provided:
21 (1) the notice to bidders shall list each county
22 which may participate in the purchase of the item
23 or items being bid,
- 24

- 1 (2) the notice of bid is advertised, as provided by
2 law, in each of the counties which may
3 participate in the purchase of the item or items,
4 (3) all vendors on the list of qualified bidders of
5 each participating county who offer the item or
6 items for sale received notice of the bid
7 request, and
8 (4) the vendor awarded the bid is willing and able to
9 provide the item or items at the bid price,
- 10 p. counties may participate in a nationwide purchasing
11 program sponsored by the national association
12 representing counties and local cooperative
13 procurement agreements entered into by the counties
14 and other local jurisdictions or any other
15 competitively bid nationwide purchasing program, or
- 16 q. when the Governor declares an emergency in a county,
17 the district attorney of that county shall have the
18 authority to temporarily waive competitive bidding
19 procedures for purchases that may expedite a response
20 to the emergency situation. This temporary waiver
21 shall be in addition to any powers exercised pursuant
22 to Section 683.11 of Title 63 of the Oklahoma
23 Statutes.
24

1 The purchases shall be paid by attaching properly itemized
2 invoices, as described in Section 1505 of this title, to a purchase
3 order which has been prepared by the county purchasing agent and
4 submitting both to the county clerk for filing, encumbering, and
5 consideration for payment by the board of county commissioners;

6 4. Shall not furnish any supplies, materials, equipment, or
7 other articles, except upon receipt of a requisition signed by a
8 county officer. Written requisitions will not be required for
9 blanket purchase orders as provided for in Section 310.8 of Title 62
10 of the Oklahoma Statutes. Each county officer may designate not
11 more than two employees who also shall be authorized to sign
12 requisitions in the absence of the county officer. A written
13 designation of the employees shall be filed with the county clerk
14 and shall be entered in the minutes of the board of county
15 commissioners. The county may designate two individuals who are not
16 county employees for each of the following entities within the
17 county to act as receiving and requisitioning officers:

18 a. fire protection districts organized and operated
19 pursuant to the provisions of Sections 901.1 through
20 901.29 of this title,

21 b. fire protection services established pursuant to the
22 provisions of Section 351 of this title,
23
24

1 c. volunteer or full-time fire departments established
2 pursuant to Section 592 of Title 18 of the Oklahoma
3 Statutes, and

4 d. municipal fire departments organized and operated
5 pursuant to the provisions of Sections 29-101 through
6 29-115 of Title 11 of the Oklahoma Statutes.

7 A written designation of these individuals shall be filed with
8 the county clerk and shall be entered in the minutes of the board of
9 county commissioners meeting in which the designations are made.

10 Further, entities described in subparagraphs a, b, c, and d of this
11 paragraph, choosing to have any nonemployee of the county designated
12 as a receiving and requisitioning officer shall provide evidence of
13 blanket bond coverage or employee dishonesty liability insurance for
14 each such designee;

15 5. Shall make lease or lease-purchase agreements for road
16 machinery and equipment if the county has adequate funds
17 appropriated during any fiscal year for such purpose and only after
18 following the bidding procedures as provided for in Section 1505 of
19 this title. The term of any lease or lease-purchase agreement
20 authorized pursuant to this paragraph may be for any period up to
21 one (1) year; provided, the term shall not extend beyond the end of
22 any fiscal year, with an option to renew such agreement subject to
23 the requirement that adequate funds are appropriated during the
24 fiscal year by the county for such purpose. The Office of the State

1 Auditor and Inspector shall be notified by the county of the terms
2 and conditions of a lease or lease-purchase agreement authorized
3 pursuant to this paragraph before any such agreement is made by the
4 county purchasing agent; and

5 6. Shall perform such other duties as may be delegated by the
6 appointing authority or as may be provided for by law.

7 B. Each department of county government needing repairs to
8 equipment, machinery, or vehicles shall make estimates and
9 requisition a purchase order from the county purchasing agent for
10 repairs not in excess of Ten Thousand Dollars (\$10,000.00). Repairs
11 in excess of Ten Thousand Dollars (\$10,000.00) shall be submitted on
12 a blanket purchase order as provided in Section 310.8 of Title 62 of
13 the Oklahoma Statutes.

14 C. Each department of county government needing repairs to
15 heavy equipment, meaning equipment in excess of ten thousand
16 (10,000) pounds, shall make estimates and requisition a purchase
17 order from the county purchasing agent for repairs not in excess of
18 Thirty Thousand Dollars (\$30,000.00). Repairs in excess of Thirty
19 Thousand Dollars (\$30,000.00) shall be submitted on a blanket
20 purchase order as provided in Section 310.8 of Title 62 of the
21 Oklahoma Statutes.

22 SECTION 2. AMENDATORY 19 O.S. 2021, Section 1505, as
23 last amended by Section 2, Chapter 85, O.S.L. 2025 (19 O.S. Supp.
24 2025, Section 1505), is amended to read as follows:

1 Section 1505. The following procedures shall be used by
2 counties for the requisition, purchase, lease-purchase, rental, and
3 receipt of supplies, materials, road and bridge construction
4 services, and equipment,~~and other services, except for professional~~
5 ~~services as defined in Section 803 of Title 18 of the Oklahoma~~
6 ~~Statutes,~~ for the maintenance, operation, and capital expenditures
7 of county government unless otherwise provided for by law.

8 A. The procedure for requisitioning items for county offices
9 shall be as follows:

10 1. The requesting department shall prepare a requisition form
11 in triplicate. The requisition shall contain any specifications for
12 an item as deemed necessary by the requesting department. The form
13 shall be prescribed by the State Auditor and Inspector;

14 2. The requesting department shall retain a copy of the
15 requisition and forward the original requisition and a copy to the
16 county purchasing agent; and

17 3. Upon receipt of the requisition, the county purchasing
18 agent, within two (2) working days, shall begin the bidding and
19 purchasing process as provided for in this section. Nothing in this
20 section shall prohibit the transfer of supplies, materials, or
21 equipment between county departments upon a written agreement
22 between county officers.

1 B. The bid procedure for selecting a vendor for the purchase,
2 lease-purchase, or rental of supplies, materials, equipment, and
3 services used by a county shall be as follows:

4 1. The county purchasing agent shall request written
5 recommendations from all county officers pertaining to needed or
6 commonly used supplies, materials, road and bridge construction
7 services, equipment, and services. From such recommendations and
8 available requisition, purchase, or inventory records, the county
9 purchasing agent shall prepare a list of items needed or commonly
10 used by county officers. The county purchasing agent shall request
11 from the Purchasing Division or from the Information Services
12 Division in the case of information technology and telecommunication
13 goods and services of the Office of Management and Enterprise
14 Services all contracts quoting the price the state is paying for the
15 items. The county purchasing agent shall either request the
16 Purchasing Division or the Information Services Division of the
17 Office of Management and Enterprise Services, as applicable, to make
18 the purchase for the county or the county purchasing agent shall
19 solicit bids for unit prices on the items for periods of not to
20 exceed twelve (12) months in the manner described in paragraph 2 of
21 this subsection. If the county purchasing agent receives a
22 requisition for an item for which the county purchasing agent does
23 not have a current bid, the county purchasing agent shall request
24 from the Purchasing Division or the Information Services Division of

1 the Office of Management and Enterprise Services, as applicable, all
2 contracts quoting the price the state is paying for the item. The
3 county purchasing agent shall either request the Purchasing Division
4 or the Information Services Division of the Office of Management and
5 Enterprise Services, as applicable, to make the purchase for the
6 county or the county purchasing agent shall solicit bids in the
7 manner described in paragraph 2 of this subsection. Nothing in this
8 paragraph shall prohibit bids from being taken on an item currently
9 on a twelve-month bid list, at any time deemed necessary by the
10 county purchasing agent. Whenever the county purchasing agent deems
11 it necessary to take a bid on an item currently on a twelve-month
12 bid list, the reason for the bid shall be entered into the minutes
13 of the board of county commissioners;

14 2. Bids shall be solicited by mailing or emailing a notice to
15 all persons or firms who have made a written request of the county
16 purchasing agent that they be notified of such bid solicitation and
17 to all other persons or firms who might reasonably be expected to
18 submit bids. Notice of solicitation of bids shall also be published
19 one time in a newspaper of general circulation in the county.
20 Notices shall be mailed and published at least ten (10) days prior
21 to the date on which the bids are opened. Proof of the mailing or
22 emailing shall be made by the affidavit of the person mailing or
23 emailing the request for bids and shall be made a part of the
24 official records of the county purchasing agent. The notice shall

1 specify whether the county will consider written bids, electronic
2 bids, or both; the decision to exclusively consider either written
3 bids or electronic bids shall be determined pursuant to an
4 affirmative vote of the board of county commissioners. Whenever any
5 prospective supplier or vendor dealing in or listing for sale any
6 particular item or article required to be purchased or acquired by
7 sealed bids fails to enter or offer a sealed bid for three
8 successive bid solicitations, the name of the supplier or vendor may
9 be dropped from the mailing lists of the board of county
10 commissioners;

11 3. The sealed bids received from vendors and the state contract
12 price received from the applicable division of the Office of
13 Management and Enterprise Services shall be given to the county
14 clerk by the county purchasing agent. The county clerk shall
15 forward the sealed bids and state contract price, if any, to the
16 board of county commissioners;

17 4. The board of county commissioners, in an open meeting, shall
18 open the sealed bids and compare them to the state contract price.
19 The board of county commissioners shall select the lowest and best
20 bid based upon, if applicable, the availability of material and
21 transportation cost to the job site within thirty (30) days of the
22 meeting. For any special item not included on the list of needed or
23 commonly used items, the requisitioning official shall review the
24 bids and submit a written recommendation to the board before final

1 approval. The board of county commissioners shall keep a written
2 record of the meeting as required by law, and any time the lowest
3 bid was not considered to be the lowest and best bid, the reason for
4 such conclusion shall be recorded. Whenever the board of county
5 commissioners rejects the written recommendation of the
6 requisitioning official pertaining to a special item, the reasons
7 for the rejection shall be entered in their minutes and stated in a
8 letter to the requisitioning official and county purchasing agent;

9 5. The county purchasing agent shall notify the successful
10 bidders and shall maintain a copy of the notification. The county
11 purchasing agent shall prepare and maintain a vendors list
12 specifying the successful bidders and shall notify each county
13 officer of the list. The county purchasing agent may remove any
14 vendor from such list who refuses to provide goods or services as
15 provided by contract if the removal is authorized by the board of
16 county commissioners. The county purchasing agent may make
17 purchases from the remaining bidders for a price at or below the bid
18 price; and

19 6. When bids have been solicited as provided for by law and no
20 bids have been received, the procedure shall be as follows:

- 21 a. the county purchasing agent shall determine if
22 potential vendors are willing to commit to a firm
23 price for a reduced period of time, and, if such is
24

1 the case, the bid procedure described in this
2 subsection shall be followed,

3 b. if vendors are not willing to commit to a firm price
4 for a reduced period, the purchasing agent shall
5 solicit and record at least three quotes of current
6 prices available to the county and authorize the
7 purchase of goods or services based on the lowest and
8 best quote as it becomes necessary to acquire such
9 goods or services. The quotes shall be recorded on a
10 form prescribed by the State Auditor and Inspector and
11 shall be attached to the purchase order and filed with
12 the county clerk's copy of the purchase order. Any
13 time the lowest quote was not considered to be the
14 lowest and best quote, the reason for this conclusion
15 shall be recorded by the county purchasing agent and
16 transmitted to the county clerk, or

17 c. if three quotes are not available, a memorandum to the
18 county clerk from the county purchasing agent shall
19 describe the basis upon which a purchase is
20 authorized. The memorandum shall state the reasons
21 why the price for such a purchase is the lowest and
22 best under the circumstances. The county clerk shall
23 then attach the memorandum to the county clerk's copy
24

1 of the purchase order and file both in the office of
2 the county clerk.

3 C. After selection of a vendor, the procedure for the purchase,
4 lease-purchase, or rental of supplies, materials, road and bridge
5 construction services, equipment, and services used by a county
6 shall be as follows:

7 1. The county purchasing agent shall prepare a purchase order
8 in quadruplicate and submit it with a copy of the requisition to the
9 county clerk;

10 2. The county clerk shall then encumber the amount stated on
11 the purchase order and assign a sequential number to the purchase
12 order;

13 3. If there is an unencumbered balance in the appropriation
14 made for that purpose by the county excise board, the county clerk
15 shall so certify in the following form:

16 "I hereby certify that the amount of this encumbrance has been
17 entered against the designated appropriation accounts and that this
18 encumbrance is within the authorized available balance of the
19 appropriation.

20 Dated this _____ day of _____, 20__.

21 _____
22 County Clerk/Deputy

23 of _____ County".
24

1 In instances where it is impossible to ascertain the exact amount of
2 the indebtedness sought to be incurred at the time of recording the
3 encumbrance, an estimated amount may be used. No purchase order
4 shall be valid unless signed by the county purchasing agent and
5 certified by the county clerk; and

6 4. The county clerk shall file the original purchase order and
7 return three copies to the county purchasing agent who shall file a
8 copy, retain a copy for the county road and bridge inventory officer
9 if the purchase order is for the purchase of equipment, supplies, or
10 materials for the construction or maintenance of roads and bridges,
11 and submit the other copy to the receiving officer of the requesting
12 department.

13 D. 1. The procedure for the purchase of supplies, materials,
14 equipment, and services at public auction or by sealed bid to be
15 used by a county shall be as follows:

16 a. the county purchasing agent shall prepare a purchase
17 order in quadruplicate and submit it with a copy of
18 the requisition to the county clerk,

19 b. the county clerk shall then encumber the amount stated
20 on the purchase order and assign a sequential number
21 to the purchase order,

22 c. if there is an unencumbered balance in the
23 appropriation made for that purpose by the county
24

1 excise board, the county clerk shall so certify in the
2 following form:

3 "I hereby certify that the amount of this encumbrance
4 has been entered against the designated appropriation
5 accounts and that this encumbrance is within the
6 authorized available balance of the appropriation.

7 Dated this _____ day of _____, 20__.

8 _____
9 County Clerk/Deputy

10 of _____ County".

11 In instances where it is impossible to ascertain the
12 exact amount of the indebtedness sought to be incurred
13 at the time of recording the encumbrance, an estimated
14 amount may be used. No purchase order shall be valid
15 unless signed by the county purchasing agent and
16 certified by the county clerk, and

- 17 d. the county clerk shall file the original purchase
18 order and return three copies to the county purchasing
19 agent who shall file a copy, retain a copy for the
20 county road and bridge inventory officer if the
21 purchase order is for the purchase of equipment,
22 supplies, or materials for the construction or
23 maintenance of roads and bridges, and submit the other
24

1 copy to the receiving officer of the requesting
2 department.

3 2. The procedure for the purchase of supplies, materials, and
4 equipment at a public auction when the purchase will be made with
5 the proceeds from the sale of county property at the same public
6 auction is as follows:

7 a. the purchasing agent shall cause such items being sold
8 to be appraised in the manner determined in Section
9 421.1 of this title,

10 b. the county purchasing agent shall prepare a purchase
11 order in quadruplicate and submit it with a copy of
12 the requisition to the county clerk,

13 c. the county clerk shall then encumber the amount of the
14 appraised value and any additional funds obligated by
15 the county on the purchase order and assign a
16 sequential number to the purchase order,

17 d. the county clerk shall certify that the amount of the
18 encumbrance is equal to the appraised value of the
19 item being sold plus any additional funds obligated by
20 the county. In effect, the recording of the
21 encumbrance is an estimate that is authorized by law.
22 No purchase order shall be valid unless signed by the
23 county purchasing agent and certified by the county
24 clerk,

1 e. the county clerk shall file the original purchase
2 order and return three copies to the county purchasing
3 agent who shall file a copy, retain a copy for the
4 county road and bridge inventory officer if the
5 purchase order is for the purchase of equipment,
6 supplies, or materials for the construction or
7 maintenance of roads and bridges, and submit the other
8 copy to the receiving officer of the requesting
9 department, and

10 f. a purchase shall not be bid until such time that the
11 appraised item or items are sold. Any item or items
12 purchased shall not exceed the appraised value plus
13 any additional funds obligated by the county or the
14 actual selling price of the item or items, whichever
15 is the lesser amount.

16 E. The procedure for the receipt of items shall be as follows:

17 1. A receiving officer for the requesting department shall be
18 responsible for receiving all items delivered to that department;

19 2. Upon the delivery of an item, the receiving officer shall
20 determine if a purchase order exists for the item being delivered;

21 3. If no such purchase order has been provided, the receiving
22 officer shall refuse delivery of the item;

23 4. If a purchase order is on file, the receiving officer shall
24 obtain a delivery ticket, bill of lading, or other delivery document

1 and compare it with the purchase order. If any item is back-
2 ordered, the back order and estimated date of delivery shall be
3 noted in the receiving report;

4 5. The receiving officer shall complete a receiving report in
5 quadruplicate which shall state the quantity and quality of goods
6 delivered. The receiving report form shall be prescribed by the
7 State Auditor and Inspector. The person delivering the goods shall
8 acknowledge the delivery by signature, noting the date and time;

9 6. The receiving officer shall file the original receiving
10 report and submit:

- 11 a. a copy of the purchase order and a copy of the
12 receiving report to the county purchasing agent, and
- 13 b. a copy of the receiving report with the delivery
14 documentation to the county clerk;

15 7. The county purchasing agent shall file a copy of the
16 purchase order and a copy of the receiving report;

17 8. Upon receipt of the original receiving report and the
18 delivery documentation, the county clerk shall maintain a file until
19 such time as an invoice is received from the vendor;

20 9. The invoice shall state the name and address of the vendor
21 and must be sufficiently itemized to clearly describe each item
22 purchased, the unit price when applicable, the number or volume of
23 each item purchased, the total price, the total purchase price, and
24 the date of the purchase;

1 10. Upon receipt of an invoice, the county clerk shall compare
2 the following documents:

- 3 a. requisition,
- 4 b. purchase order,
- 5 c. invoice with noncollusion affidavit as required by
6 law,
- 7 d. receiving report, and
- 8 e. delivery document.

9 The documents shall be available for public inspection during
10 regular business hours; and

11 11. If the documents conform as to the quantity and quality of
12 the items, the county clerk shall prepare a warrant for payment
13 according to procedures provided for by law.

14 F. The following procedures are for the processing of purchase
15 orders:

16 1. The purchasing agent shall be allowed up to three (3) days
17 to process purchase orders to be presented to the board of county
18 commissioners for consideration and payment. Nothing herein shall
19 prevent the purchasing agent from processing or the board of county
20 commissioners from consideration and payment of utilities, travel
21 claims, and payroll claims;

22 2. The board of county commissioners shall consider the
23 purchase orders so presented and act upon the purchase orders, by
24 allowing in full or in part or by holding for further information or

1 disallowing the same. The disposition of purchase orders shall be
2 indicated by the board of county commissioners, showing the amounts
3 allowed or disallowed, and shall be signed by at least two members
4 of the board of county commissioners. Any claim held over for
5 further information shall be acted upon by allowing or disallowing
6 same at any future meeting of the board held within seventy-five
7 (75) days from the date of filing of the purchase order. Any
8 purchase order not acted upon within the seventy-five (75) days from
9 the date of filing shall be deemed to have been disallowed, but such
10 disallowance shall not prevent the refiling of the purchase order at
11 the proper time; and

12 3. Whenever any allowance, either in whole or in part, is made
13 upon any purchase order presented to the board of county
14 commissioners and is accepted by the person making the claim, such
15 allowance shall be a full settlement of the entire purchase order
16 and provided that the cashing of warrant shall be considered as
17 acceptance by the claimant.

18 G. The procedure upon consumption or disposal of supplies,
19 materials, or equipment shall be as follows:

20 1. For consumable road or bridge items or materials, a
21 quarterly report of the road and bridge projects completed during
22 such period shall be prepared and kept on file by the consuming
23 department. The quarterly report may be prepared and kept
24 electronically by the consuming department. The report shall

1 contain a record of the date, the place, and the purpose for the use
2 of the road or bridge items or materials. For purposes of
3 identifying county bridges, the board of county commissioners shall
4 number each bridge subject to its jurisdiction; and

5 2. For disposal of all equipment ~~and information technology and~~
6 ~~telecommunication goods~~ which originally cost more than Five Hundred
7 Dollars (\$500.00), resolution of disposal shall be submitted by the
8 officer on a form prescribed by the Office of the State Auditor and
9 Inspector to the board of county commissioners. The approval of the
10 resolution of disposal shall be entered into the minutes of the
11 board.

12 H. Inventory forms and reports shall be retained for not less
13 than two (2) years after all audit requirements for the state and
14 federal government have been fulfilled and after any pending
15 litigation involving the forms and reports has been resolved.

16 I. The procedures provided for in this section shall not apply
17 when a county officer certifies that an emergency exists requiring
18 an immediate expenditure of funds. Such an expenditure of funds
19 shall not exceed Five Thousand Dollars (\$5,000.00). The county
20 officer shall give the county purchasing agent a written explanation
21 of the emergency. The county purchasing agent shall attach the
22 written explanation to the purchase order. The purchases shall be
23 paid by attaching a properly itemized invoice, as described in this
24 section, to a purchase order which has been prepared by the county

1 purchasing agent and submitting them to the county clerk for filing,
2 encumbering, and consideration for payment by the board of county
3 commissioners.

4 J. The county purchasing agent may authorize county purchasing
5 officers to make acquisitions through the state purchase card
6 program as authorized by the State Purchasing Director in accordance
7 with Section 85.5 of Title 74 of the Oklahoma Statutes and defined
8 in Section 85.2 of Title 74 of the Oklahoma Statutes. A purchase
9 cardholder shall sign a purchase card agreement prior to becoming a
10 cardholder and attend purchase card procedure training as required
11 by the State Purchasing Director. Complete descriptions of
12 purchases made by county government entities shall be published as
13 warrants required to be published pursuant to Sections 444 and 445
14 of this title.

15 K. Nothing in this section shall prohibit counties from
16 providing material and/or services bids on the twelve-month bid list
17 to all road and bridge projects and contracts. All non-road and
18 bridge related construction contracts shall refer to subsection A of
19 Section 103 of Title 61 of the Oklahoma Statutes.

20 SECTION 3. REPEALER 19 O.S. 2021, Section 1801, is
21 hereby repealed.

22 SECTION 4. This act shall become effective November 1, 2026.

23 COMMITTEE REPORT BY: COMMITTEE ON LOCAL AND COUNTY GOVERNMENT
24 April 7, 2026 - DO PASS